

#	Case Name	Tentative
	2023-01339723	Moving parties shall separately electronically file and serve the proposed Second Amended Complaint (Ex. A to moving papers), within five days. Separate e-filing is required to ensure the pleading is properly indexed in the court's electronic filing system. The trial date is continued to October 26, 2026 at 9:30 a.m. in Department C28. Discovery is to remain open based on the new trial date. The court considered the late-filed opposition and reply. Moving parties shall give notice of this ruling.
53.	Bialas v. General Motors LLC 2025-01489084	Plaintiff Michael Robb Bialas's motion for attorney fees and costs is GRANTED in the total amount of \$12,424.90, consisting of \$10,868.50 in attorney fees and \$1,556.40 in costs. (See Civ. Code, § 1794, subd. (d).) <u>Attorney fees.</u> There is no dispute that plaintiff is the prevailing party in this action for purposes of attorney fees and costs. (See Civ. Code, § 1794, subd. (d); <i>Wohlgemuth v. Caterpillar Inc.</i> (2012) 207 Cal.App.4th 1252, 1259-1264; see also Kay Decl. ¶¶ 13-14; Morrow Decl. ¶ 7; Mtn. Memo. P&As at p. 1.) Further, defendant does not challenge the reasonableness of the rates charged. The court finds that all of the hours claimed were reasonably incurred in conduct of this litigation, contrary to defendant's contentions. (See Morrow Decl. ¶ 8, Ex. 1 [time records].) As for the time requested to take the deposition of defendant's PMK, defendant's recitation of events is incomplete. On 11/6/25, the day after the PMK deposition, plaintiff's counsel (1) spoke with their plaintiff "re settlement/acceptance," and (2) informed defendant that plaintiff would accept their offer to repurchase the vehicle. (Morrow Decl. at Ex. 1 [11/6/25 entries]; Kay Decl. ¶ 12.) The final settlement breakdown and formal release and settlement agreement came much later, and plaintiff did not execute the settlement and release until 1/26/26. (Kay Decl. ¶ 14; see Morrow Decl. at Ex. 1 [11/2025-1/2026 entries].) As such, plaintiff was entitled to take the PMK deposition when he did and did not act unreasonably in proceeding with it. It is not uncommon for settlement negotiations to fall through, and plaintiff was not required to continue the deposition merely because the parties were contemplating settlement.

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		<u>Costs</u>. The court finds that all \$1,556.40 in costs were reasonably incurred and are reasonable in amount. (See Civ. Code, § 1794, subd. (d); <i>Warren v. Kia Motors America, Inc.</i> (2018) 30 Cal.App.5th 24, 42-43 [the phrase “costs and expenses” covers items not included in the statutory definition of “costs” set forth in Code Civ. Proc., § 1033.5]; see also Code Civ. Proc., § 1033.5, subds. (a)(1) [filing fees are recoverable], (3) [deposition costs are recoverable], (14) [efiling fees are recoverable], (c); Morrow Decl. ¶ 9, Ex. 2 [listing costs incurred in this action under penalty of perjury].) Defendant has failed to demonstrate otherwise. (See <i>Ladas v. California State Auto. Ass’n</i> (1993) 19 Cal.App.4th 761, 774 [burden].) The court orders this case dismissed, without prejudice with the court retaining jurisdiction to enforce the terms of the settlement pursuant to C.C.P. § 664.6. The OSC scheduled for July 27, 2026 is vacated. Plaintiff shall give notice of this ruling.
54.	The Summit at Turtle Ridge Community Association v. Sheng 2025-01494328	Cross-Defendant The Summit at Turtle Ridge Community Association’s motion for attorney fees and costs against Cross-Complainant Jie Sheng is GRANTED. (Code Civ. Proc. §425.16, subd. (c)(1).) Cross-Defendant Leyla Dennis’ motion for attorney fees and costs against Cross-Complainant Jie Sheng is GRANTED. (Code Civ. Proc. §425.16, subd. (c)(1).) Cross-Defendant Summit filed a special motion to strike Cross-Complainant Jie Sheng’s First Amended Cross-Complaint pursuant to Code Civ. Proc. §425.16. On 3/16/26, the Court granted the motion in full. Cross-Defendant Dennis filed a special motion to strike Cross-Complainant Jie Sheng’s First Amended Cross-Complaint pursuant to Code Civ. Proc. §425.16. On 3/16/26, the Court granted the motion in part and denied the motion in part. Pursuant to Code Civ. Proc. § 425.16, subd. (c), a party who brings a successful motion to strike is entitled to mandatory attorney fees. (<i>Ketchum v. Moses</i> (2001) 24 Cal. 4th 1122, 1131.) Additionally, a party whose motion to strike is partially successful may still be a prevailing party and recover fees connected with the successful aspects of the motion, provided the moving party gained a practical benefit by prevailing on the motion. (See <i>Moran v. Endres</i> (2006) 135 Cal.App.4th 952, 954; <i>Jackson v. Yarbray</i> (2009) 170 Cal.App.4th 75, 82.)